

included the lengthy duration of the proceedings to date, the age of the application or patent and the fact that the department of first instance had considered all the arguments.

See Case Law of the Boards of Appeal, 9th edition, 2019, V.A.7.7.

9.4.3 The term "fundamental deficiencies"

The term "fundamental deficiencies" referred to in Art. 11 RPBA 2020 (Art. 11 RPBA 2007) and the notion of a "substantial procedural violation" in R. 103(1)(a) EPC are used synonymously (see T. 2231/09). A "fundamental deficiency" does not appear to be any different from a "substantial procedural violation" (see T. 2346/10). A board is to remit the case if fundamental deficiencies, such as a substantial procedural violation, are apparent in the first-instance proceedings (J. 16/17, T. 1414/18).

9.4.4 Fundamental deficiencies

a) Violation of right to be heard

According to the established case law of the boards of appeal, the violation of the right to be heard under Art. 113(1) EPC is a fundamental procedural deficiency in the first-instance proceedings that amounts to a special reason within the meaning of Art. 11 RPBA 2020 and justifies remittal to the department that issued the contested decision. The right to be heard was found to have been violated in the following cases:

T. 2538/18 (lack of opportunity to make comments), T. 1879/17 (the opposition division had violated the patent proprietor's right to be heard by deciding not to admit an auxiliary request into the proceedings without having looked at it), T. 314/18 (witness offered but not heard), T. 1817/16 (the opposition division had violated the patent proprietor's right to be heard by issuing the decision to revoke the patent before expiry of the time limit it had previously set for making written submissions), T. 1928/17 (a party must not be taken by surprise by the inclusion of previously unknown grounds in the reasons for the decision), T. 1414/18 (lack of opportunity to make comments), T. 97/14 (the appellant's arguments had not been properly taken into account), T. 560/20 (the appellant had not had an opportunity to present its comments on the sole ground on which the impugned division was based) and T. 545/18 (the appellant had been unable to present arguments in relation to the objection under Art. 56 EPC).

b) Reasons for decision deficient

R. 111(2) EPC gives parties to EPO proceedings a fundamental procedural right to be provided with the reasons for a decision. A breach of R. 111(2) EPC is a fundamental procedural deficiency that can lead to a remittal as a special reason within the meaning of Art. 11 RPBA 2020. The following cases were remitted to the department of first instance:

T. 2475/17 (insufficient reasons given for the first-instance decision, which also did not address the version of claim 1 filed by the applicant), T. 942/18 (the board considered lack of compliance with R. 111(2) EPC to be a fundamental deficiency, not a minor defect),

T.78/17 (all relevant arguments have to be given appropriate consideration in the written decision), T.1928/17 (inadequate reasons) and T.571/19 (reasons for the decision must enable both the parties and the board of appeal to understand whether or not the decision is justified).

c) Missing signatures

In T.989/19, the board held the contested decision to be invalid because the cover page had not been signed by all the members of the examining division, which amounted to a fundamental procedural deficiency in the proceedings before the examining division. Since the established case law had it that remittal of an appeal case did not adversely affect the appellant, the decision in this case could be issued without oral proceedings (see e.g. T.42/90 and T.382/10).

In T.2348/19 the chair of the opposition division had not signed either the minutes or the reasoned decision, and in neither case had it been explained in writing why the first examiner had signed on the chair's behalf. The case was remitted to the opposition division for further prosecution.

d) Failure to hold oral proceedings

In T.170/21 the decision to refuse the application without summoning the applicant to oral proceedings had taken the appellant by surprise, thereby depriving it of a further opportunity to present its final comments and/or its final fallback positions and denying it the right to be heard as guaranteed by Art.113(1) EPC. This conclusion was in line with established case law of the boards of appeal; see for example T.1423/13, which dealt with almost identical circumstances (refusal without summoning to previously announced oral proceedings).

e) Incorrect application of R. 137(5) EPC

In T.2431/19 the board stated that the incorrect interpretation and application of R.137(5) EPC in the case in hand constituted a substantial procedural violation within the meaning of R.103(1)(a) EPC as well as a fundamental deficiency under Art.11 RPBA 2020, justifying a remittal to the examining division for further prosecution (Art.111(1) EPC).

9.5. Requests for or against remittal

Under Art.11 RPBA 2020, parties need not request remittal since the boards have discretion to remit a case and can do so without any such request (T.78/17; see also T.1805/14).

In many cases, the parties explicitly requested remittal to the department of first instance; see for example the ex parte cases T.1754/15, T.1966/16 and T.2519/17. Similarly, in the inter partes cases T.240/16, T.1376/17, T.2908/18, T.323/18 and T.395/18, the requests made by both parties were taken into account.

In T.1964/17 the complete absence of any analysis of the grounds for opposition of lack of novelty and lack of inventive step in the decision under appeal and the requests for remittal made by both parties were considered special reasons within the meaning of Art. 11 RPBA 2020.

In T.194/17 the board noted that the substantial procedural violation could in principle be a sufficient reason for setting aside the contested decision and remitting the case to the opposition division. However, the appellant had requested that the case **not** be remitted to the opposition division and that the board itself decide on it. In view of the principle of procedural economy, the length of the opposition (appeal) proceedings to date, the already advanced age of the patent and the fact that the violation concerned dependent claims, the board granted the appellant's request.

In T.1655/20 the board remitted the case to the examining division for further prosecution despite the appellant's request that the board decide on all the outstanding issues. In the case in hand the examining division had dismissed the main request only on the ground of lack of novelty and so without assessing inventive step. In addition, the first auxiliary request filed with the appeal had been modified and so differed from the first auxiliary request considered in the decision under appeal. The board deemed these circumstances to amount to special reasons justifying remittal of the case within the meaning of Art. 11 RPBA 2020. See also T.97/14 and T.568/17.

9.6. No remittal to the department of first instance

9.6.1 Same legal and factual framework

In T.418/17 the board stated that, although the primary object of the appeal proceedings was to review the decision under appeal in a judicial manner (see Art. 12(2) RPBA 2020), there was no absolute right to have every issue decided at two instances. In the case in hand, although the decision under appeal was limited to the main request, auxiliary request 1 did not alter the legal and factual framework because it resulted from a combination with a granted dependent claim.

In T.1561/15, the contested decision had maintained the patent as amended on the basis of auxiliary request 3. The opposition division had exhaustively discussed all the requirements of the EPC that were likewise relevant for assessing the new main request. For reasons of procedural economy in particular, the board found it expedient and reasonable to use the discretion conferred on it under Art. 111(1) EPC and Art. 11 RPBA 2020 to examine and rule itself on the objections raised by the opponent.

In T.1355/18, the opposition division had already discussed the novelty and inventive step of a similar request to auxiliary request 1, so no special reasons as per Art. 11 RPBA 2020 presented themselves for remitting the case.

In T.2085/17 the board stated that remitting the case to the examining division pursuant to Art. 11 RPBA 2020, as requested by the appellant, did not seem appropriate. While the board's decision was based formally on a different legal provision, namely Art. 56 EPC

instead of Art. 52(2) and (3) EPC (as cited by the examining division), the underlying issue of excluded subject-matter was the same, and the board had reached its finding on the basis of the same facts and arguments, which seemed to be quite clear.

In T 113/18 the board's position was that the respondent's silence could not lead to automatic remittal of the case to the opposition division to decide whether there were any remaining objections likely to prejudice maintenance of the patent; that would deprive the board of the discretion conferred on it by Art. 111(1) EPC, the purpose of which was to weigh up all the circumstances of the case in hand, including, in particular, whether there were any additional contentious issues which had not been brought to its attention. Accordingly, in the absence of any objection raised by the respondent against the main request, the board decided not to remit the case to the opposition division.

In T 464/17 the essential facts and evidence had already been part of the first-instance proceedings, so no fresh case was created.

In T 1388/17 the board did not consider the use of a different secondary document from the one which the opposition division had used in finding that the requests before it lacked inventive step to constitute a special reason for remittal.

The boards ruling in the inter partes cases T 1936/16, T 1388/17 and T 2202/19 and the ex parte case T 786/16 similarly could not see any special reasons for remitting the case to the department of first instance.

9.6.2 Objections raised by the board

In T 1089/17, in reply to the board's communication, which had introduced document D5 (a patent application filed by the appellant itself), the appellant submitted a procedural request that the case be remitted to the department of first instance. However, the board considered that it had to judge whether remittal under Art. 111(1) EPC was appropriate in view of the requirements of Art. 11 RPBA 2020. According to the explanatory remarks on Art. 11 RPBA 2020, the aim of the new provision was to reduce the likelihood of a "ping-pong" effect between the boards of appeal and the departments of first instance and a consequent undue prolongation of the entire proceedings before the EPO. Hence, a board should normally not remit a case if it could decide on all the issues without undue burden.

In T 1803/14 the board found that all relevant facts had been presented and the case was ready for decision. On the appellant's argument that remittal to the department of first instance was the only appropriate and fair outcome, the board noted that it was established case law that Art. 111(1) EPC did not imply an absolute right to have an issue decided on at two instances. In the case in hand, fairness of the proceedings had been guaranteed in that the board had raised its objections twice, at points in time which had given the appellant the opportunity to consider them and respond accordingly.

In T 1538/17 the appellant argued that it was appropriate to remit the case for further prosecution to the examining division, as the board had raised a fresh clarity objection at the oral proceedings and there were different opinions on how to read the claim when

assessing inventive step. The board stated that the new clarity objection was directly related to its and the appellant's diverging views on the interpretation of claim 1. This divergence had to be resolved before the examining division's decision refusing the then first auxiliary request (which essentially corresponded to the main request filed on appeal) for lack of inventive step could be reviewed. The board therefore considered it appropriate to deal with the clarity objection in the appeal proceedings.

9.7. Obiter dicta

Obiter dicta are sometimes included in first-instance decisions in order to avoid remittal. They thereby serve overall procedural economy and effectiveness (T 493/13). In the interests of overall procedural economy and effectiveness, the board in T 473/98 (OJ 2001, 231) also found it entirely appropriate and desirable that an opposition division should include in the reasons for a revocation decision pursuant to Art. 102(1) EPC 1973 employing the standard decision formula, by way of obiter dicta, findings which could obviate a remittal in the event of the revocation being reversed on appeal. See also T 2446/16 (ex parte proceedings).

9.8. Remittal for hearing of witnesses

In T 1551/14 the board remitted the case to the opposition division with an order that a witness be heard again, if necessary under oath before a national court.

9.9. Remittal for adaptation of the description

Art. 11 RPBA 2020 only applies to cases that are remitted "for further prosecution". In particular, it does not apply to cases that are remitted with an order by the board to grant a patent or to maintain a patent in amended form, be it with or without adaptation of the description (see explanatory remarks on Art. 11 RPBA 2020, Supplementary publication 2, OJ 2020).

In T 1716/12 the board stated that remittal "with a description to be adapted" had become common practice of the boards of appeal and was, effectively, a remittal for further prosecution within the meaning of Art. 111(1) EPC and subject to the limits imposed in Art. 111(2) EPC.

In T 146/17 the board stated that it was customary to remit cases to the department of first instance with an instruction to maintain the patent with an adapted description. It saw no reason to deviate from this standard course of action in the case in hand simply because the patent proprietor had not attended the oral proceedings.

In T 32/16 the board stated that, regarding adaptation of the description to the new claims, the respondent's (patent proprietor's) preference to perform this at the oral proceedings was not followed. The required amendments to the description were seen to be of not inconsiderable scope, and the appellant indicated its need to fully consider any amendments made without being under time pressure. Under these circumstances, the board thus decided to remit the case to the opposition division under Art. 111(1) EPC for